

Central Valley Regional Water Quality Control Board

7 August 2017

John Key
Cal Fire- Delta Conservation Camp
6246 Lambie Road
Suisun City, CA 94585

CERTIFIED MAIL
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NOTICE OF APPLICABILITY, WATER QUALITY ORDER WQ 2014-0153-DWQ-R5240, CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION, DELTA CONSERVATION CAMP, SOLANO COUNTY

California Department of Forestry and Fire Protection (CAL FIRE) (hereafter "Discharger") submitted a request dated 18 April 2017 seeking coverage under the State Water Resources Control Board (State Water Board) *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems*, Order WQ 2014-0153-DWQ (General Order) for Delta Conservation Camp in Solano County. This notice of applicability (NOA) serves as formal notice that the General Order is applicable to the site as described below. You are hereby assigned WQ 2014-0153-DWQ-R5240 for the discharge. A copy of the General Order is enclosed and also available at:

http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

You should familiarize yourself with the entire General Order and its attachments, which describe mandatory discharge and monitoring requirements. The General Order contains operational and reporting requirements by wastewater system type. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) 2014-0153-DWQ-R5240. The Discharger is responsible for all the applicable requirements that exist in the General Order and this NOA.

REGULATORY BACKGROUND

Wastewater discharge from the Delta Conservation Camp is currently regulated by Waste Discharge Requirements (WDR) Order 88-030, which was adopted on 26 February 1988. WDR Order 88-030 will be rescinded at an upcoming Central Valley Regional Water Board meeting. Effective upon rescission of Order 88-030, the discharge shall be regulated pursuant to the General Order.

FACILITY AND DISCHARGE DESCRIPTION

The Delta Conservation Camp is a correctional facility located two miles off highway 12 on Lambie Road in Suisun City. The facility is in Section 3, T4N, R1E, MDB&M in Solano County. The California Department of Correction and Rehabilitation (CDCR) constructed the facility, which is operated by CAL FIRE. The site location is shown on Attachment A, which is attached hereto and is made part of this NOA by reference.

The current facility has an inmate population of 97, with a maximum capacity of 132 inmates, and approximately 20 CAL FIRE and CDCR personnel. Wastewater is generated from a laundry facility, inmate dormitories, two shop buildings, staff offices and sleeping quarters, vehicle cleaning area, and wash water from kitchen cleaning. All cooking waste flows through a 1,000-gallon grease trap and the trapped waste is hauled off site four times a year.

Wastewater flows by gravity to a 12,000 gallon concrete septic tank. Septage is hauled off-site twice a year. Septic tank effluent is then pumped to four percolation and evaporation ponds which have a combined area of approximately 4.63 acres. All ponds are eight-foot deep, including two feet of freeboard. Current average daily wastewater flows are approximately 9,000 gallons per day (gpd) with a maximum of 12,000 gpd. There are three groundwater monitoring wells onsite. A site plan is presented on Attachment B, which is attached hereto and is made part of this NOA.

SITE-SPECIFIC REQUIREMENTS

The wastewater treatment operator must be familiar with the requirements contained in the General Order, this NOA, and the MRP.

Note that the General Order contains prohibitions and specifications that apply to all wastewater treatment systems as well as those that only apply to specific treatment and/or disposal systems. The specific requirements for your treatment system are summarized below.

A. Prohibitions

This section applies to all discharges.

B. Requirements by Wastewater System Type

B.1. All Wastewater Systems

B.1.a. Wastewater discharged to the ponds shall not exceed 12,000 gpd as a monthly average.

B.1.i. Wastewater system setbacks.

Equipment or Activity	Domestic Well	Flowing Stream	Ephemeral Stream Drainage	Property Line	Lake or Reservoir
Septic tank and Collection System ¹	150 ft.	50 ft.	50 ft.	5 ft.	200 ft.
Disposal Pond ²	150 ft.	150 ft.	150 ft.	50 ft.	200 ft.

¹ Reference setbacks from "Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System" in Table 3 of General Order.

² Reference setbacks from "Impoundment (undisinfected secondary recycled water)" in Table 3 of General Order.

B.2. Septic Systems

The facility utilizes a septic tank; therefore this section applies in its entirety.

B.5. Pond Systems

The facility utilizes a pond system; therefore this section applies in its entirety.

C. Groundwater and Surface Water Limitations

There are three groundwater monitoring wells onsite; therefore this section applies in its entirety.

MONITORING AND REPORTING PROGRAM

The Discharger shall comply with the attached MRP 2014-0153-DWQ-R5240, which is attached hereto and made part of this NOA by reference.

ENFORCEMENT

Please review this NOA carefully to ensure that it completely and accurately reflects the discharge. Discharge of wastes other than those described in this NOA is prohibited. Prior to allowing changes to the wastewater strength or generation rate, or if the method of waste disposal changes from that described in your application, you must contact the Central Valley Regional Water Board to determine if submittal of a Report of Waste Discharge is required.

CAL FIRE generates the waste subject to the terms and conditions of WQ 2014-0153-DWQ-R5240 and maintains exclusive control over the discharge. As such, CAL FIRE is primarily responsible for compliance with this NOA, MRP, and General Order WQ 2014-0153-DWQ-R5240, with all attachments. Failure to comply with the requirements in the General Order and this NOA could result in an enforcement action as authorized by provisions of the California Water Code.

ANNUAL FEES

Staff has determined the discharge is a threat to water quality and complexity rating of 3-B. The current annual fee corresponding to a threat to water quality and complexity of 3-B is currently \$4,699; however, because the permitted flow is less than 50,000 gpd, the discharge qualifies for the 50-percent fee discount. Therefore, the annual fee for this discharge is currently \$2,349. The fee is due and payable on an annual basis until coverage under the General Order is formally rescinded. Please note that the annual fees are reviewed each year and may change. If the wastewater discharge ceases and to avoid additional billing, you must provide written notice so that we may terminate coverage under the General Order.

DOCUMENT SUBMITTAL

All monitoring reports and other correspondence should be converted to searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50 MB should be emailed to:

centralvalleysacramento@waterboards.ca.gov.

To ensure that your submittal is routed to the appropriate staff person, the following information should be included in the body of the email or any documentation submitted to the mailing address for this office:

Facility Name: Delta Conservation Camp, Solano County		
Program: Non-15 Compliance	Order: WQ 2014-0153-DWQ-R5240	CIWQS Place ID:219551

Documents that are 50 MB or larger should be transferred to a CD, DVD, or flash drive and mailed to:

Central Valley Regional Water Quality Control Board
ECM Mailroom
11020 Sun Center Drive, Suite 200
Rancho Cordova, CA 95670

Now that the Notice of Applicability has been issued, the Board's Compliance and Enforcement section will take over management of your case. Kenny Croyle is your new point of contact for any questions about the Waiver. If you find it necessary to make a change to your permitted operations, Kenny will direct you to the appropriate Permitting staff. You may contact Kenny at (916) 464-4676 or at kcroyle@waterboards.ca.gov.


PAMELA C. CREEDON
Executive Officer

enc: Water Quality Order WQ 2014-0153-DWQ
Monitoring and Reporting Program 2014-0153-DWQ-R5240
Attachment A, Site Location Map
Attachment B, Site Plan
MRP Transmittal Sheet

cc w/out enc: Timothy O'Brien, State Water Resources Control Board, Sacramento
Jeffery Bell, Solano County Environmental Health Division, Fairfield

2. An evaluation of the performance of the wastewater treatment system, including discussion of capacity issues, nuisance conditions, system problems, and a forecast of the flows anticipated in the next year. A flow rate evaluation, as described in the General Order (Provision E.2.c), shall also be submitted.
3. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
4. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
5. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.
6. A groundwater monitoring report prepared by a California licensed professional. This report may be prepared separately from the rest of the Annual Report. The report shall contain an analysis of groundwater data collected during the year. The analysis shall include a description of the sample events, copies of the field logs, purge method and volume, groundwater elevation and trend, a groundwater elevation map for each sample event, summary tables showing results for parameters measured, comparison of groundwater quality parameters to standards in the NOA, chain-of-custody forms, calibration logs for field equipment used, and a general evaluation of any impacts the wastewater discharge is having on groundwater quality.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of the those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

The Discharger shall implement the above monitoring program as of the date of this MRP.

Ordered by:


For PAMELA C. CREEDON, Executive Officer

8/7/17

DATE